

Architect/Engineer Agreement Form (K-12 School Project)

State of Ohio Professional Services Agreements for Public Facility Construction

This Agreement is made as of the date set forth below between the President and Treasurer of the School District Board, and the Architect/Engineer in connection with the Project.

Project Number: 18062
Project Name: New Elementary School and Fieldhouse
Site Address: Blossom Hill Site
Brecksville, Cuyahoga

School District Board ("Owner"): Brecksville-Broadview Heights City School District
Owner's Representative: Joelle Magyar, Superintendent
Address: 6638 Mill Road
Brecksville, Ohio 44141

Contracting Authority: The School District Board above.

Architect/Engineer ("A/E"): ThenDesign Architecture, Ltd.
A/E's Principal Contact: Christopher Smith
Address: 4135 Erie Street
Willoughby, Ohio 44094

ARTICLE 1 - SCOPE OF WORK; CONSTRUCTION BUDGET; EDGE COMMITMENT

1.1 The A/E shall perform and provide all of the Services described in the Agreement.

1.1.1 The project delivery method(s) for this Project shall be construction manager-at-risk.

1.1.2 During the Construction Stage, the A/E and appropriate Consultants shall be present at the Site not less than sixteen (16) hours per week (excluding travel time to and from the Site) whenever any Work is in preparation or progress, unless otherwise expressly provided in writing by the Contracting Authority.

1.2 The Construction Budget for the Elementary School is **\$35,500,000.00**.

1.3 The A/E shall contract with EDGE-certified Business Enterprise(s) for not less than zero percent of the A/E's total compensation.

1.4 The A/E acknowledges that a Field House is being attached to the Elementary School as part of the Scope of Work. The Field House will be owned by the City of Brecksville. The School District is contracting for all elements of the Field House pursuant to agreements with the City of Brecksville and the City of Brecksville is paying for the Field House and other site related improvements. As to the Field House and those site related improvements relating to the Field House only (referred to collectively as the "Field House Improvements"), the A/E acknowledges and agrees that The City of Brecksville is an intended Third-Party Beneficiary with respect to the A/E's obligations for the Field House Improvements which entitles them to receive the performance of the A/E's obligations under this contract. The City of Brecksville as a Third-Party Beneficiary is empowered, but not obligated, to enforce the provisions of this Agreement.

1.5 Any Reference to the Ohio Facilities Construction Commission, the Commission or the State of Ohio shall be replaced with the School District Board.

1.6 Any reference to OAKS, EDGE or LEED shall be deleted.

ARTICLE 2 - COMPENSATION

2.1 The total compensation for the A/E's Services is **\$3,715,000.00** which includes the sum of **(1)** the Basic Fee, **(2)** Additional Services Fees, and **(3)** Reimbursable Expenses. The Owner shall pay the total compensation amount to the A/E in exchange for the A/E's proper, timely, and complete performance of the Services.

2.2 Basic Fee.

2.2.1 For Basic Services provided by the A/E and all Consultants in accordance with the **A/E Scope of Services** attached at **Exhibit B**, the Owner shall pay the A/E the Basic Fee of **\$2,485,000.00**, which shall not be exceeded without the prior written approval of the Contracting Authority and Owner, and an amendment to this Agreement. The Basic Fee is subject to the following allocation:

Project Stage	Associated Fee	Portion of Basic Fee
Program Verification	\$74,550.00	3%
Schematic Design	\$422,450.00	17%
Design Development	\$497,000.00	20%
GMP Documents (75% CD)	\$372,750.00	15%
GMP Proposal and Amendment	\$49,700.00	2%
Conformed Documents (25% CD)	\$372,750.00	15%
Construction	\$621,250.00	25%
Closeout Deliverables	\$74,550.00	3%
Total Basic Fee	\$2,485,000.00	100%

2.3 Additional Services Fees.

2.3.1 For Additional Services provided by the A/E and all Consultants, the Owner shall pay the A/E the Additional Services Fees of up to **\$1,165,000.00** which shall not be exceeded without the prior written approval of the Contracting Authority and Owner, and an amendment to this Agreement. For Additional Services performed by a Consultant, Additional Services Fees shall be based on the Consultant's associated invoices to the A/E and may include an A/E mark-up of zero percent. The Additional Services Fees are subject to the following allocation:

Description of Additional Services	NTE/LS*	Associated Fee
Basic design services for New Fieldhouse (\$7m const. value)	LS	\$490,000.00
Basic design services for renovations at MS and HS (\$5m cv.)	LS	\$350,000.00
Basic design services for abate/demo of Chippewa ES	LS	\$15,000.00
Basic design services for abate/demo of Highland ES	LS	\$15,000.00
Basic design services for abate/demo of Hilton ES	LS	\$15,000.00
Construction testing services	NTE	\$150,000.00
Geotechnical testing	NTE	\$40,000.00
Air monitoring during abatement/demolition	NTE	\$25,000.00
Land Survey for Chippewa, Highland, and Hilton ES	LS	\$40,000.00
Land Survey for Blossom Hill Site	LS	\$15,000.00
Environmental Site Assessment (ESA) phase 1	LS	\$10,000.00
Total Additional Services Fees		\$1,165,000.00

* NTE = Not to Exceed Amount / LS = Lump Sum

2.4 Reimbursable Expenses.

2.4.1 For Reimbursable Expenses incurred by the A/E and all Consultants, the Owner shall pay the A/E up to **\$65,000.00** which shall not be exceeded without the prior written approval of the Contracting Authority and Owner, and an amendment to this Agreement. No A/E or Consultant mark-up shall be permitted on Reimbursable Expenses. Reimbursable Expenses are subject to the following allocation:

Description	NTE/LS*	Associated Amount
Additional Review Document Printing	NTE	\$15,000.00
Plan Approval Fees	NTE	\$20,000.00
Stormwater Permit Fees	NTE	\$30,000.00
Total Reimbursable Expenses		\$65,000.00

* NTE = Not to Exceed Amount / LS = Lump Sum

ARTICLE 3 - KEY PERSONNEL

3.1 The A/E's key personnel for the Project are:

3.1.1 Christopher Smith, Principal-in-Charge;

3.1.2 Ryan Schmit, Project Management Lead;

3.1.3 Mia Katz, Project Designer

3.1.4 Lydia Harrison, Interior Designer

3.2 The identities of the A/E's key personnel, and the extent of their participation in performing the A/E's services as identified above, shall not be altered without the Contracting Authority's prior written consent.

3.3 The A/E shall dismiss from the Project any individual employed by the A/E or Consultant who the Contracting Authority finds, in its sole discretion, to be incompetent, guilty of misconduct, or detrimental to the Project.

ARTICLE 4 - CONSULTANTS

4.1 The A/E's Consultants for the Project are:

4.1.1 Civil Engineering:

Greenland Engineering
4133 Erie Street
Willoughby, Ohio 44094

4.1.2 Structural Engineering:

Alber and Rice
31913 Cook Road
North Ridgeville, Ohio 44039

4.1.3 Structural, Mechanical, Electrical, Technology and Fire Protection Engineering:

Thorson Baker Associates
3030 W. Streetsboro Road
Richfield, Ohio 44286

ARTICLE 5 - GENERAL PROVISIONS

5.1 Effectiveness.

5.1.1 It is expressly understood by the A/E that none of the rights, duties, and obligations described in the Contract Documents shall be valid and enforceable unless the Treasurer of the School District first certifies that there is a balance in the School District's treasury or are in the process of collection to an appropriate fund, free from any previous encumbrance.

5.1.2 Subject to **Section 5.1.1**, the Agreement shall become binding and effective upon execution by the School District Board and A/E, subject to approval of the Commission.

5.1.2.1 If the A/E is a joint venture, **(1)** each individual joint venturer shall **(a)** sign the Agreement in its own name and **(b)** be a party to the Contract, and **(2)** the Contract shall be binding on and apply to all joint venturers jointly and severally.

5.1.2.2 If the A/E is a limited liability company, which the Contracting Authority reasonably believes to be a special purpose or similar entity, the Contracting Authority may in its discretion require the limited liability company and each member of the limited liability company to **(1)** sign the Agreement in its own name and **(2)** be a party to the Contract. In that case, the Contract shall be binding on and apply to the limited liability company and to all of its members jointly and severally.

5.1.3 This Agreement may be executed in several counterparts, each of which shall constitute a complete original Agreement, which may be introduced in evidence or used for any other purpose without production of any other counterparts.

5.2 Representations.

5.2.1 The A/E represents and warrants that it is not subject to an unresolved finding for recovery under ORC Section 9.24. If this representation and warranty is found to be false, the Agreement is void, and the A/E shall immediately repay to the Owner any funds paid under this Agreement.

5.2.2 The A/E hereby certifies that neither the A/E nor any of the A/E's partners, officers, directors, shareholders nor the spouses of any such person have made contributions in excess of the limitations specified in ORC Section 3517.13.

5.2.3 The A/E, by signature on this Agreement, certifies that it is currently in compliance with, and will continue to adhere to, the requirements of Ohio ethics laws and conflict of interest laws and will take no action inconsistent with those laws.

5.2.4 The A/E affirms to have read and understands Executive Order 2011-12K and shall abide by those requirements in the performance of this Agreement. Notwithstanding any other terms of this Agreement, the State reserves the right to recover any funds paid for services the A/E performs outside of the United States for which it did not receive a waiver. The State does not waive any other rights and remedies provided the State in this Agreement.

5.2.5 Pursuant to ORC Section 9.76(B), the A/E warrants that it is not boycotting any jurisdiction with whom the State of Ohio can enjoy open trade, including Israel, and will not do so during the term of this Agreement.

ARTICLE 6 - ENUMERATION OF DOCUMENTS

6.1 This Agreement includes the following documents:

6.1.1 A/E Standard Terms and Conditions attached at **Exhibit A**;

6.1.2 A/E Scope of Services attached at **Exhibit B**;

6.1.3 Minimum Stage Submission Requirements attached at **Exhibit C**;

6.1.4 Contracting Definitions attached at **Exhibit D**.

TREASURER'S SIGNATURE AND CERTIFICATION

IT IS HEREBY CERTIFIED that the moneys required to meet the obligations of the **Board of Education of the Brecksville-Broadview Heights City School District** under the foregoing Agreement have been lawfully appropriated for such purposes and are in the treasury of the **Brecksville-Broadview Heights City School District** or are in the process of collection to an appropriate fund, free from any previous encumbrance.

Purchase Order No.

Signature

Printed Name

School District Board Treasurer

END OF DOCUMENT